

Interpretation of the Electricity Act, 2003

Statutory construction across the judgments, grouped by provision

Every interpretation of a statutory provision drawn from the judgments, grouped by the provision construed. Identical readings are stated once with all contributing cases tagged; distinct readings appear separately. Provisions are ordered Section 2(15) → 135(1) → third proviso → 150 → 154(5) → 138 → 126/127/145.

SECTION 2(15) — “CONSUMER”

The Court read “consumer” to embrace both the person actually using the electricity and the owner/registered consumer of the connected premises. A registered consumer stays answerable for illegal abstraction found at the premises even where another person is the user (*Lokesh Chandela*).

‘Consumer’ covers both the person actually using the electricity and the owner/registered consumer of the connected premises; a registered consumer cannot disown liability for illegal abstraction found at her premises merely because another (her son) was the user (*Lokesh Chandela* followed).

004 Momin & Anr.

005 Mohd. Riyaz & Anr.

‘Consumer’ includes the owner/registered consumer, not only the actual user; the owner is answerable for illegal abstraction found at the premises even where a tenant is the user (*Lokesh Chandela*).

019 Devanand

021 Archana Shukla

023 Nikhat

‘Consumer’ under Section 2(15) includes the owner/registered consumer, not only the actual user; the owner is answerable for illegal abstraction found at the premises even where a tenant is the user (*Lokesh Chandela*).

020 Bobby Khurana

022 Tilak Raj

024 Nikhat

025 Devanand

041 Jameed & Anr.

SECTION 135(1) — THEFT OF ELECTRICITY

Most of the set was confined to clause (a) — a dishonest tap on, or connection with, the licensee’s lines, cables, service wires or service facilities — direct hooking rather than meter tampering; one conviction (040) rests on the meter-tampering limbs (clauses (b)/(c)). “Dishonestly”, undefined in the Act, is supplied by Section 24 IPC (wrongful gain to one / wrongful loss to another). The unauthorised connection took many forms — pole hooks, distribution-box and feeder-pillar taps, punctured service cables, LV/LT-mains hooks and meter bypasses. The acquittals apply the same provision in the negative: the offence arises only once the prosecution proves both the artificial abstraction and the accused’s identity as its author, so where identity or the inspection itself is not proved the charge fails.

Clause (a) — tapping or making a connection with a licensee’s overhead, underground or service lines/wires — is the operative limb in a direct-hooking case (clauses (b)–(e) needing a metering/tampering foundation). ‘Dishonestly’ being undefined in the Act, Section 24 IPC supplies the definition (wrongful gain to one person or wrongful loss to another); drawing supply through an unmetered illegal Teflon-wire tap satisfies dishonest intention.

001 Gaffar Miya

Clause (a) — tapping or making a connection with a licensee’s lines — is the operative limb in a direct-hooking case. ‘Dishonestly’ being undefined in the Act, Section 24 IPC supplies the definition (wrongful gain/wrongful loss); drawing supply through an unmetered illegal Teflon-wire tap from the input terminal of another consumer’s meter satisfies dishonest intention.

002 Sattar Miya

003 Gaffar Miya

Direct tapping of the licensee's AB conductor through insulated wires routed via a concealed change-over switch — enabling supply to be flipped between a stopped meter and the stolen feed — is direct theft; the hidden switch, stopped meter and absence of any Genset explanation evidence the dishonest design (s.24 IPC standard).

004 Momin & Anr.

Drawing supply through an illegal wire connected into the supply cable while the installed meter lies stopped — the service cable tampered so consumption bypasses registration — is direct theft; the stopped meter, tampered cable and absence of any lawful-source explanation evidence the dishonest design (s.24 IPC standard).

005 Mohd. Riyaz & Anr.

Hooking a cable directly onto the licensee's pole to feed premises with no meter of their own is the paradigm clause (a) offence; 'dishonestly' takes its s.24 IPC meaning — unmetered floors, the pole-to-premises cable and no lawful-source explanation satisfied it.

006 Mohd. Riyaz

Only clause (a) engaged; four ingredients enumerated: (i) dishonest intention (s.24 IPC — wrongful gain/wrongful loss); (ii) tapping or causing a connection with the licensee's lines/cables/service facilities; (iii) the accused being the user or consumer of the abstracted electricity; (iv) punishability with imprisonment up to 3 years, fine or both. Direct tapping from an LT Network Distribution Box to run an unmetered jhuggi's load satisfies all.

007 Devi Prasan

Hooking wires from the licensee's pole (YVR J081) to unmetered premises is a clause (a) connection. 'Dishonestly' takes its s.24 IPC meaning (wrongful gain/wrongful loss).

008 Ravinder

Puncturing the licensee's service cable at the pole and drawing supply through a wire so connected is a clause (a) tap — a connection at the pole-head or box is not required. 'Dishonestly' takes its s.24 IPC meaning (wrongful gain/wrongful loss).

009 Yasmeen

A wire run from the distribution box of the licensee's street-light network to unmetered premises is a clause (a) connection with the licensee's service facilities. 'Dishonestly' takes its s.24 IPC meaning (wrongful gain/wrongful loss).

010 Tilak Raj

A two-core wire connected from the licensee's distribution box to unmetered premises is a clause (a) connection. 'Dishonestly' takes its s.24 IPC meaning (wrongful gain/wrongful loss).

011 Altaf

Piercing the licensee's pole-mounted service cable to draw supply to unmetered premises is a clause (a) tap; Section 138 was reproduced but only s.135(1)(a) applied. 'Dishonestly' takes its s.24 IPC meaning (wrongful gain/wrongful loss).

012 Shehzad & Anr.

Tapping the street-light point on the licensee's pole to feed unmetered premises is a clause (a) connection with the licensee's service facilities. 'Dishonestly' takes its s.24 IPC meaning (wrongful gain/wrongful loss).

013 Gyatri Devi

017 Atul

A long cable hooked from the licensee's pole to run scrap work at unmetered premises is a clause (a) connection with the licensee's lines. 'Dishonestly' takes its s.24 IPC meaning (wrongful gain/wrongful loss).

014 Mustak Hussain

Illegal tapping from the licensee's distribution box to unmetered premises is a clause (a) connection; where the occupant obstructs and removes the wires, the tap and load may still be proved by the officials' testimony, the videographed proceedings and the load taken on the accused's own disclosure. 'Dishonestly' takes its s.24 IPC meaning.

015 Laxmi Mishra

A cable hooked from the licensee's pole-mounted distribution box to unmetered mixed shop-and-home premises is a clause (a) connection with the licensee's works. 'Dishonestly' takes its s.24 IPC meaning (wrongful gain/wrongful loss).

016 Shimla

A wire hooked from the licensee's pole to unmetered premises powering a GSM antenna (telecom) tower is a clause (a) connection; partial seizure of the tapping wire (part out of reach) is not fatal — seizure is only corroborative where the theft is videographed. 'Dishonestly' takes its s.24 IPC meaning.

018 Imran

Bypass of the metering system: four installed meters with outgoing supply disconnected while the load ran directly through a service cable joined with an illegal wire (Section 135(1)).

019 Devanand

The Court treated clause (a) — tapping or making a connection with a licensee's overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated the drawing of supply to unmetered premises through a two-core cable hooked from the licensee's pole as satisfying the requirement of dishonest intention.

020 Bobby Khurana

A two-core black aluminium cable tapped directly from the licensee's LV mains (Section 135(1)(a)).

021 Archana Shukla

The Court treated clause (a) — tapping or making a connection with a licensee's overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated through a two-core cable tapped directly from the licensee's network, the premises having no meter as satisfying the requirement of dishonest intention.

022 Tilak Raj

A single-core black-and-red wire joined to a yellow cable tapped from the licensee's distribution box (Section 135(1)(a)).

023 Nikhat

The Court treated clause (a) — tapping or making a connection with a licensee's overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated through a wire tapped from the licensee's distribution box, the premises having no meter as satisfying the requirement of dishonest intention.

024 Nikhat

The Court treated clause (a) — tapping or making a connection with a licensee's overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated by bypassing the metering system — the premises' four installed meters standing with their outgoing supply disconnected while the third-floor load ran directly through a service cable as satisfying the requirement of dishonest intention.

025 Devanand

The Court read Section 135(1) as requiring the prosecution first to prove, beyond reasonable doubt, the foundational facts — an unauthorised or artificial abstraction of electricity and the identity of the accused as its author or as the consumer/user of the inspected premises. Only upon proof of those facts does the offence, or the abetment of it, arise; a bare allegation, or mere presence at or near the spot, is not enough. As the Act does not define “dishonestly,” Section 24 IPC is imported, but dishonest intention presupposes an abstraction first fixed on the accused.

026 Vinod Kumar

027 Smt. Rakhi

032 Aamer Suhail

035 Shakuntala

042 Sharad Rana & Anr.

043 Narpal

044 Amit Gahlot

045 Arvind & Anr.

046 Geeta

047 Munni Devi

048 Anmol

049 Arjun

The Court treated clause (a) — tapping or making a connection with a licensee’s overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated the abstraction of supply by puncturing the licensee’s service cable to draw power ahead of the meter as satisfying the requirement of dishonest intention.

028 Shehzad

The Court treated clause (a) — tapping or making a connection with a licensee’s overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated by directly tapping the licensee’s LV mains through illegal wires, the supply drawn without a meter as satisfying the requirement of dishonest intention.

030 Neelam

The Court treated clause (a) — tapping or making a connection with a licensee’s overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated by hooking the licensee’s LT mains through PVC wires to run a dhaba, the supply drawn without a meter as satisfying the requirement of dishonest intention.

031 Sukh Chain

The Court treated clause (a) — tapping or making a connection with a licensee’s overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated by directly tapping the licensee’s pole through illegal wires, the supply drawn without a meter as satisfying the requirement of dishonest intention.

033 Saroj Devi

The Court treated clause (a) — tapping or making a connection with a licensee’s overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated by hooking the licensee’s LT aerial-bunched conductor, an earlier connection in his father’s name having been disconnected as satisfying the requirement of dishonest intention.

034 Arjun

The Court treated clause (a) — tapping or making a connection with a licensee’s overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated by directly tapping the licensee’s pole through a two-core wire to charge e-rickshaws, the supply drawn without a meter as satisfying the requirement of dishonest intention.

036 Shekh Rabibul

The Court treated clause (a) — tapping or making a connection with a licensee’s overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated by tapping the phase from the licensee’s

Tyco-box feeder pillar and taking the neutral from earthing, the supply drawn without a meter as satisfying the requirement of dishonest intention.

037 Sunil Kumar

The Court treated clause (a) — tapping or making a connection with a licensee's overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated by directly tapping the licensee's LT network from a pole through two-core PVC wires, the supply drawn without a meter as satisfying the requirement of dishonest intention.

038 Prem Kumar Soni

Where the abstraction is achieved not by an external hook but by tampering with the meter itself — here a “meter-jumping” arrangement causing the meter not to register the true consumption — the offence falls under the meter-tampering limbs of Section 135(1) (interfering with, or preventing the correct registration by, a meter). It is as much a dishonest abstraction as a direct tap; the retained meter is the material evidence of the manner of theft.

040 Kumari Devi

The Court treated clause (a) — tapping or making a connection with a licensee's overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated by directly tapping the licensee's pole through a two-core aluminium cable, the premises having no meter as satisfying the requirement of dishonest intention.

050 Kuldeep

THIRD PROVISO TO SECTION 135(1) — PRESUMPTION OF DISHONEST USE

A reverse-onus clause. On proof of an artificial or unauthorised means of abstraction, dishonest use is presumed “until the contrary is proved.” Read with *Neeraj Dutt* (“shall presume” is compulsory) and *Hiten P. Dalal* (rebuttal on the prudent-man standard), the burden shifts to the accused, the natural rebuttal being proof of lawful metered use — paid bills — under the Section 106 Evidence Act onus (*Mukesh Rastogi*). It was not rebutted in any case in this set.

A reverse-onus clause: proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use 'until the contrary is proved'. 'Shall presume' is a compulsory presumption (*Neeraj Dutt*); the accused must adduce evidence making his defence reasonably probable to a prudent man (*Hiten P. Dalal*); the natural rebuttal is proof of a lawful, metered source, typically paid bills, the onus lying on the consumer under Section 106 Evidence Act (*Mukesh Rastogi*).

001 Gaffar Miya

006 Mohd. Riyaz

Reverse-onus clause: proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use 'until the contrary is proved'. 'Shall presume' is compulsory (*Neeraj Dutt*); rebuttal standard is evidence making the defence reasonably probable to a prudent man (*Hiten P. Dalal*); natural rebuttal is proof of lawful metered use — paid bills — the onus lying on the consumer under Section 106 Evidence Act (*Mukesh Rastogi*).

002 Sattar Miya

003 Gaffar Miya

The compulsory presumption arises on proof of an artificial/unauthorised means and operates against the user AND the registered consumer alike; each must rebut on the prudent-man standard, the natural mode being proof of lawful metered use (paid bills; s.106 Evidence Act onus).

004 Momin & Anr.

005 Mohd. Riyaz & Anr.

On proof of an artificial/unauthorised means of abstraction, dishonest abstraction is presumed until the contrary is proved. Read in tandem with Section 106 Evidence Act (facts especially within a person's knowledge): the occupant must explain the source running his appliances by cogent and credible evidence; bald defence or a relative's unsubstantiated testimony does not discharge the onus.

007 Devi Prasan

Reverse-onus clause: proof of an artificial/unauthorised means raises a compulsory presumption of dishonest use (Neeraj Dutt) rebuttable on the prudent-man standard (Hiten P. Dalal); natural rebuttal is paid bills / lawful metered use, the s.106 Evidence Act onus lying on the consumer (Mukesh Rastogi).

008 Ravinder

009 Yasmeen

010 Tilak Raj

011 Altaf

Reverse-onus clause: proof of an artificial/unauthorised means raises a compulsory presumption of dishonest use (Neeraj Dutt) rebuttable on the prudent-man standard (Hiten P. Dalal); natural rebuttal is paid bills / lawful metered use, the s.106 Evidence Act onus on the consumer (Mukesh Rastogi).

012 Shehzad & Anr.

013 Gyatri Devi

014 Mustak Hussain

016 Shimla

017 Atul

Compulsory presumption on proof of an unauthorised means (Neeraj Dutt); rebuttal on the prudent-man standard (Hiten P. Dalal). A bare, unproved plea (here, solar power) cannot rebut it; only proof of lawful metered use / paid bills discharges the s.106 onus (Mukesh Rastogi).

015 Laxmi Mishra

Reverse-onus clause: proof of an unauthorised means raises a compulsory presumption (Neeraj Dutt) rebuttable on the prudent-man standard (Hiten P. Dalal); natural rebuttal is paid bills / lawful metered use (s.106; Mukesh Rastogi).

018 Imran

Compulsory presumption on proof of an unauthorised means (Neeraj Dutt) rebuttable on the prudent-man standard (Hiten P. Dalal); the owner-abettor must show lawful metered use / paid bills (s.106; Mukesh Rastogi).

019 Devanand

021 Archana Shukla

023 Nikhat

Read as a reverse-onus clause: proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use “until the contrary is proved.” Reading it with the “shall presume” jurisprudence (Neeraj Dutt) and the rebuttal standard (Hiten P. Dalal), the Court held that the burden shifted to the accused to make innocence reasonably probable — a bare denial, without evidence of a lawful source or paid bills, could not discharge it.

020 Bobby Khurana

022 Tilak Raj

024 Nikhat

025 Devanand

028 Shehzad

030 Neelam

031 Sukh Chain

033 Saroj Devi

034 Arjun

036 Shekh Rabibul

037 Sunil Kumar

038 Prem Kumar Soni

050 Kuldeep

The reverse-onus presumption of dishonest use operates only after the prosecution has established the artificial means of abstraction and connected it to the accused. Where that foundation fails — the inspection is self-contradictory, the user's identity is not fixed, material witnesses are withheld, the electronic record is not duly certified under Section 65B, or the officer's authority to complain is not proved — the presumption never arises. The ordinary rule then governs: the prosecution must prove guilt beyond reasonable doubt, and where two views are reasonably possible the one favouring the accused is adopted.

026 Vinod Kumar

027 Smt. Rakhi

032 Aamer Suhail

035 Shakuntala

042 Sharad Rana & Anr.

043 Narpal

044 Amit Gahlot

045 Arvind & Anr.

046 Geeta

047 Munni Devi

048 Anmol

049 Arjun

Proof that the meter was tampered raises the reverse-onus presumption of dishonest use. The accused must adduce evidence making an innocent explanation reasonably probable — a bare denial, without proof of lawful, correctly-metered consumption, does not displace it.

040 Kumari Devi

SECTION 150 — ABETMENT

Abetment carries the punishment of the principal offence. A registered consumer who, knowing the meter is stopped, permits or consciously allows the user to draw an unauthorised supply abets the theft and is convicted under Section 135 read with Section 150.

A registered consumer who, knowing her meter is lying stopped, permits or consciously allows the user to draw supply through an unauthorised connection abets the theft; under s.150(1) the abettor incurs the same punishment as the principal offence, notwithstanding anything in the IPC.

004 Momin & Anr.

005 Mohd. Riyaz & Anr.

A registered consumer/owner who consciously permits a tenant to draw an unauthorised supply abets the theft and is punishable u/s 150 with the principal's punishment. NEW: the abettor-owner can be convicted even though the actual user/principal has absconded and is never arrested or tried — the abettor's liability is independent of the principal being in the dock.

019 Devanand

021 Archana Shukla

023 Nikhat

A registered consumer/owner who consciously permits a tenant to draw an unauthorised supply abets the theft and is punishable u/s 150 with the principal's punishment; the abettor can be convicted even where the actual user has absconded or died and is never tried.

020 Bobby Khurana

022 Tilak Raj

024 Nikhat

025 Devanand

041 Jameed & Anr.

Direct abstraction of electricity is theft under Section 135; a person who consciously assists or permits it abets the offence under Section 150 and is liable to the same punishment. Where two persons act together in the abstraction, each may be principal or abettor.

041 Jameed & Anr.

SECTION 154(5) — CIVIL LIABILITY

On conviction the Special Court may additionally fix civil liability for the electricity illegally used; the criminal conviction and the civil recovery are companion outcomes of the same trial.

On conviction the Special Court may additionally fix civil liability for the electricity illegally used; conviction and civil recovery are companion outcomes, the liability to be determined at the sentencing stage.

007 Devi Prasan

On conviction the Special Court may additionally fix civil liability for the electricity illegally used; criminal conviction and civil recovery are companion outcomes of the same trial.

042 Sharad Rana & Anr.

043 Narpal

047 Munni Devi

049 Arjun

050 Kuldeep

SECTION 138 — INTERFERENCE WITH METERS OR WORKS

Section 138 punishes unauthorised interference with the licensee's meters, works or apparatus — unauthorised connection, reconnection or interference. It applies alongside Section 135 where the mode of theft is effected by interfering with the licensee's equipment (case 041), adding a distinct head of liability to the dishonest abstraction.

Section 138 punishes unauthorised interference with the licensee's meters, works or apparatus — including unauthorised connection, reconnection, or interference with the equipment. It applies alongside Section 135 where the mode of theft is effected by interfering with the licensee's works, adding a distinct head of liability to the dishonest abstraction.

041 Jameed & Anr.

SECTIONS 126, 127 & 145 — UNAUTHORISED USE & THE CIVIL-COURT BAR

The appellate decision (029) draws the cardinal line: Section 126 addresses *unauthorised use* — putting a lawful supply to a purpose other than that sanctioned (a domestic connection used for PG accommodation) — a civil, assessment-based liability, not the criminal theft of Section 135. The remedy against a Section 126 assessment is the statutory appeal under Section 127; Section 145 ousts the civil court, so a civil suit is barred and the plaint is rejected under Order 7 Rule 11(d) CPC.

The Court drew the cardinal distinction: Section 126 addresses the unauthorised use of electricity — putting a lawful supply to a purpose other than that for which it was sanctioned (here, a domestic connection used for PG accommodation) — and gives rise to a civil, assessment-based liability fixed by the assessing officer. Section 135 addresses theft — a dishonest abstraction — and is criminal. Diverting a lawful connection to an unauthorised purpose falls under Section 126, not Section 135.

029 Tata Power Delhi Distribution Ltd.

The remedy against a Section 126 assessment is the statutory appeal under Section 127 before the appellate authority. Section 145 ousts the jurisdiction of civil courts in matters the assessing officer or appellate authority is empowered to decide, so a civil suit challenging a Section 126 assessment is barred and liable to rejection under Order 7 Rule 11(d) CPC.

029 Tata Power Delhi Distribution Ltd.

CIVIL REMEDY VS CRIMINAL PROSECUTION

This proceeding marks the civil end of the spectrum. A consumer aggrieved by a demand or by the licensee's action may, in an appropriate case, seek civil relief (declaration/injunction); but where the dispute concerns an assessment for unauthorised use under Section 126, Section 145 bars the civil court and the remedy is the statutory appeal under Section 127. The criminal machinery of Section 135 is reserved for dishonest abstraction — theft — and is distinct from the consumer's civil grievances.

039 BSES Rajdhani Power Ltd.

Compilation digest generated from the per-case summaries of Cases 001–050. It collates the courts' own reasoning for cross-referencing and is not a substitute for the full judgments.